JUSTICE BARRETT delivered the opinion of the Court.

The Alien Tort Statute grants federal courts jurisdiction to hear cases involving violations of the law of nations. While conceding that the ATS is "strictly jurisdictional," we have also said that courts have narrow authority to create causes of action under it. *Sosa* v. *Alvarez-Machain*, 542 U. S. 692, 713, 724–725 (2004). These positions are in obvious tension with one another. More significantly, however, asserting such authority would intrude on both Congress's prerogative to provide rights of action and the power of the political branches to direct the Nation's foreign policy. It is therefore unsurprising that this Court has never created an ATS action. The authority to do so, always described as slight, is more accurately described as nonexistent.

Today, we close the door that *Sosa* cracked and hold that courts may not create new causes of action for violations of international norms. We also hold that the Torture Victim Protection Act of 1991, which contains an express cause of action, does not provide for aiding-and-abetting liability.

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I

A

In the early days of our Nation, two incidents involving foreign diplomats "caused substantial foreign-relations problems." *Jesner* v. *Arab Bank, PLC*, 584 U. S. 241, 253 (2018).

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ties et al. by *Thomas Becker* and *Richard Ghazal*; for Scholars of Federal Jurisdiction et al. by *James K. Green*; for the Uyghur Human Rights Project et al. by *Paul A. Cunningham*; for William R. Casto et al. by *Emily A. Ray* and *Tyler R. Giannini*; and for Bob Fu et al. by *James I. Pearce*, *Samantha P. Bateman*, and *Sydney Foster*.

Briefs of *amici curiae* were filed for the Center for A Free Cuba et al. by *Kendall Coffey*, *Amanda M. Comas*, *Tori Simkovic*, *Lee E. Goodman*, and *Manuel E. Iglesias*; for Former U. N. Special Rapporteurs on Torture by *Brian Olney* and *William J. Aceves*; and for Rep. Christopher H. Smith et al. by *Agnieszka M. Fryszman* and *Jennifer M. Green*.

The French Minister Plenipotentiary complained to the Continental Congress and threatened to leave the country after the Secretary of the French Legation was assaulted in Philadelphia. See *Kiobel* v. *Royal Dutch Petroleum Co.*, 569 U. S. 108, 120 (2013). And a New York constable caused an "international incident" a few years later when he entered the house of the Dutch Ambassador to arrest one of his servants. *Jesner*, 584 U. S., at 253.

At the time, the Articles of Confederation did not provide a federal forum to redress injuries like these. True, the wronged foreign officials could resort to state court. But Secretary of Foreign Affairs John Jay cautioned that "the Federal Government does not appear . . . to be vested with any judicial powers competent to the cognizance and judgment of such cases." 3 Dept. of State, The Diplomatic Correspondence of the United States of America 446 (1837). Other leading figures were similarly troubled that the Articles failed to "provi[de] for the case of offenses against the law of nations" and "consequently le[ft] it in the power of any indiscreet member to embroil the Confederacy with foreign nations." The Federalist No. 42, p. 265 (C. Rossiter ed. 1961) (J. Madison).

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The new Constitution equipped the Federal Government to deal with this problem. Article III extends the judicial power to "all Cases affecting Ambassadors, other public ministers and Consuls," and "to Controversies . . . between a State, or the Citizens thereof, and foreign States, Citizens or Subjects." §2. The First Congress implemented these provisions through the Judiciary Act of 1789, which established lower federal courts and granted them jurisdiction to hear suits implicating foreign affairs. See, *e. g.*, §9, 1 Stat. 77 (admiralty and maritime jurisdiction); *ibid.* (jurisdiction over "suits against consuls or vice-consuls"); §11, *id.*, at 78 (jurisdiction over suits where "an alien is a party"). The Act also included what is now known as the Alien Tort Statute. §9, *id.*, at 77. The ATS grants federal district courts

jurisdiction over "any civil action by an alien for a tort only, committed in violation of the law of nations or a treaty of the United States." 28 U. S. C. § 1350.

The ATS lay mostly dormant after its enactment. Litigants only occasionally invoked its jurisdictional grant. See *Bolchos* v. *Darrel*, 3 F. Cas. 810 (No. 1,607) (SC 1795) (seizure of slaves from a captured ship); *Moxon* v. *The Fanny*, 17 F. Cas. 942 (No. 9,895) (Pa. 1793) (seizure of a brig and cargo by French privateers). And in time, another statute authorized federal courts to hear claims arising under treaties. See Act of Mar. 3, 1875, § 1, 18 Stat. 470, as amended, 28 U. S. C. § 1331. So for almost 200 years, the ATS did virtually no work.

That changed in 1980. In *Filartiga* v. *Pena-Irala*, 630 F. 2d 876, the Second Circuit permitted an ATS suit by foreign plaintiffs against a foreign offender for engaging in torture in violation of international law. The court identified no express cause of action; instead, it held that the ATS "open[s] the federal courts for adjudication of the rights already recognized by international law." *Id.*, at 887. Taking note, other plaintiffs urged courts to allow private rights of action under the ATS for various alleged human rights abuses. See, *e. g.*, *Tel-Oren* v. *Libyan Arab Republic*, 726 F. 2d 774 (CADC 1984) (*per curiam*); *Kadic* v. *Karadžić*, 70 F. 3d 232 (CA2 1995); *Beanal* v. *Freeport-McMoran, Inc.*, 197 F. 3d 161 (CA5 1999); *In re Estate of Marcos, Human Rights Litigation*, 25 F. 3d 1467 (CA9 1994); *Abebe-Jira* v. *Negewo*, 72 F. 3d 844 (CA11 1996).

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While the Courts of Appeals wrestled with novel ATS suits, Congress enacted a related cause of action. The Torture Victim Protection Act of 1991 allows certain victims who are tortured or killed to recover damages against the perpetrators. 106 Stat. 73, note following 28 U. S. C. § 1350. But because many human rights abuses fall outside the TVPA, plaintiffs continued pressing courts to fashion rights of action under the ATS.

Over a decade later, this Court interpreted the ATS for the first time. In *Sosa* v. *Alvarez-Machain*, we held that the ATS does not permit a court to create a cause of action for arbitrary detention in violation of international law. 542 U. S., at 699, 736–738. In so holding, we stressed that "the ATS is a jurisdictional statute creating no new causes of action." *Id.*, at 724. At the same time—and in considerable tension with the first point—we said that the ATS allows for the possibility of new, judicially created causes of action to enforce norms of international law. *Id.*, at 724–725.

To justify this conclusion, *Sosa* reasoned that the First Congress would not have expected the ATS to "l[ie] fallow" until Congress or state legislatures enacted causes of action for violations of the law of nations. *Id.*, at 719. Law-of-nations offenses formed part of "the ambient law of the era," and some "were understood to be within the common law." *Id.*, at 714, 720. William Blackstone's legal treatise discussed three: "violation of safe conducts, infringement of the rights of ambassadors, and piracy." *Id.*, at 715 (citing 4 Commentaries on the Laws of England 68 (1769)). Given this history, *Sosa* "assume[d] that the First Congress understood that the district courts would recognize private causes of action for certain torts in violation of the law of nations." 542 U. S., at 724. But *Sosa* "found no basis to suspect Congress had any examples in mind beyond those torts corresponding to Blackstone's three primary offenses." *Ibid.* And it acknowledged that when the ATS was enacted, no one would have understood the statute as a grant of authority to create causes of action. *Id.*, at 725–726. Nonetheless, *Sosa* asserted that courts have very modest authority to create causes of action under the ATS for violations of international norms. *Id.*, at 724–725.

Recognizing the tension between this interpretation of the ATS and the limits of the judicial role, *Sosa* emphasized the narrowness of its view. Though it did not "close the door" to "independent judicial recognition of actionable interna-

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tional norms," it underscored the need for "vigilant doorkeeping." *Id.*, at 729. To that end, *Sosa* proposed a two-step framework. First, a plaintiff must show that the norm has a "definite content and acceptance among civilized nations." *Id.*, at 732. (This was an effort to head off judicial creativity with respect to the norms themselves.) Second, a plaintiff must show that it would be prudent for the court to create the proposed cause of action when the political branches have not acted. *Id.*, at 726, 736, n. 27; *Jesner*, 584 U. S., at 257–258 (plurality opinion). (This was a warning that courts must tread lightly, because creating rights of action is Congress's prerogative, and foreign policy is the political branches' domain.) In *Sosa*, the plaintiff's claim failed at the first step, so the Court had no occasion to proceed to the second. 542 U. S., at 736–738.

Since *Sosa*, we have repeatedly turned away plaintiffs asserting claims under the ATS. In *Kiobel* v. *Royal Dutch Petroleum Co.*, we held that any ATS claims are subject to the presumption against extraterritoriality; thus, those "seeking relief for violations of the law of nations occurring outside the United States" are "barred." 569 U. S., at 124. We reiterated that point in *Nestlé USA, Inc.* v. *Doe*, holding that "allegations of general corporate activity . . . cannot alone establish domestic application of the ATS." 593 U. S. 628, 634 (2021). And in *Jesner* v. *Arab Bank, PLC*, we refused to impose ATS liability on foreign corporations. 584 U. S., at 272.

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B

Plaintiffs in today's case are practitioners of Falun Gong, a religious movement that originated in China in the 1990s. They contend that the Chinese Government persecuted them because of their religious beliefs, and that Cisco Systems, Inc. enabled that persecution by developing surveillance technology that allowed China to identify and apprehend them. By engaging in this conduct, plaintiffs say, Cisco and its executives aided and abetted violations of international

law—namely, torture; cruel, inhuman, or degrading treatment; forced labor; prolonged and arbitrary detention; crimes against humanity; extrajudicial killing; and forced disappearance. One plaintiff also seeks to hold two Cisco executives liable under the TVPA for aiding and abetting torture.

After the District Court dismissed plaintiffs' complaint, 66 F. Supp. 3d 1239, 1247 (ND Cal. 2014), the Ninth Circuit reversed in relevant part, 73 F. 4th 700, 746 (2023). It did not decide whether the underlying violations of international law satisfied *Sosa*'s test. 73 F. 4th, at 716. Instead, it analyzed only whether aiding-and-abetting liability may be imposed under the ATS. *Ibid.* At *Sosa*'s first step, the Ninth Circuit found that "aiding and abetting liability is sufficiently definite and universal to be a viable form of liability under the ATS." 73 F. 4th, at 718. And at the second step, it concluded that neither "foreign relations concerns" nor "deference to Congress" supplied a "prudential reason to decline to recognize aiding or abetting liability." *Id.*, at 720. The Ninth Circuit also held that the TVPA "encompasses claims against those who aid and abet torture or extrajudicial killing." *Id.*, at 744.

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Judge Christen dissented in part. She saw "several sound reasons to decline to recognize a cause of action for aiding and abetting" the alleged acts. *Id.*, at 748. Notably, she reasoned that "a finding of liability in this case would necessarily require a showing that the Chinese Communist Party and Ministry of Public Security violated international law." *Ibid.* And such a finding "could have serious ramifications" for U. S.-China relations, "fraught as they already are." *Id.*, at 749. Permitting aiding-and-abetting liability under the ATS is thus "inconsistent with [the court's] obligation to exercise 'great caution in adapting the law of nations to private rights.'" *Id.*, at 751 (quoting *Sosa*, 542 U. S., at 728).

Six judges dissented from the denial of rehearing en banc. They reasoned that ATS liability should be restricted "to causes of action comparable to historically recognized torts."

113 F. 4th 1230, 1237 (CA9 2024) (opinion of Bumatay, J.). That is so because creating any additional liability under the ATS violates the separation of powers. *Id.*, at 1245–1247. And the dissenting judges would exercise greater caution before "intrud[ing] in the delicate relations with another world superpower." *Id.*, at 1237, 1247–1248.

We granted certiorari to determine whether Cisco may be held liable for aiding and abetting offenses under the ATS, as well as whether two of its executives may be held liable under the TVPA for aiding and abetting torture. 607 U. S. 1120 (2026).

II

Our starting point is *Sosa*'s key insight: The ATS "is a jurisdictional statute creating no new causes of action." 542 U. S., at 724. Put differently, "[a]s enacted in 1789, the ATS gave the district courts 'cognizance' of certain causes of action," which "bespoke a grant of jurisdiction, not power to mold substantive law." *Id.*, at 713.

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Justice Scalia would have stopped there. *Id.*, at 743–744 (opinion concurring in part and concurring in judgment). He cited "the general rule" that " 'grants of jurisdiction alone . . . are not themselves grants of lawmaking authority' " and noted that *Sosa* had not identified any reason why the ATS is an exception. *Ibid.* He then observed that *Sosa*'s "reasons why courts must be circumspect" in developing law under the ATS are actually "reasons why courts cannot possibly be thought to have been given" this power in the first place. *Id.*, at 747.

These criticisms resonated, and since then, various Members of the Court have thoughtfully explained the problems with *Sosa*'s openness—no matter how limited—to judicially created causes of action under the ATS. See *Jesner*, 584 U. S., at 274 (THOMAS, J., concurring); *id.*, at 280–292 (GORSUCH, J., concurring in part and concurring in judgment); *Nestlé*, 593 U. S., at 634–640 (opinion of THOMAS, J., joined by GORSUCH and KAVANAUGH, JJ.); see also *id.*, at 658

(ALITO, J., dissenting) (noting the "strong arguments that federal courts should never recognize new claims under the ATS"). These opinions highlight the great difficulty of satisfying *Sosa*'s second step under our modern separation-of-powers precedent.

Two points drive our decision today. First, judicial authority under *Sosa*'s second step was "narrow at the outset." *Nestlé*, 593 U. S., at 636 (opinion of THOMAS, J.). Indeed, *Sosa* instructed federal courts to exercise "great caution in adapting the law of nations to private rights." 542 U. S., at 728. Before doing so, courts must assess the "practical consequences" of creating new liability under the ATS, including the "risks of adverse foreign policy consequences." *Id.*, at 728, 732–733.

But ATS cases by their nature implicate foreign policy. As we have explained, "the danger of unwarranted judicial interference in the conduct of foreign policy is magnified in th[is] context." *Kiobel*, 569 U. S., at 116. After all, the "point of [a new ATS cause of action is] to vindicate 'a norm of international character.'" *Jesner*, 584 U. S., at 284 (opinion of GORSUCH, J.) (quoting *Sosa*, 542 U. S., at 725). It is thus difficult to think of a case in which a court "might safely conclude" that a new ATS cause of action would not have detrimental foreign policy consequences. *Jesner*, 584 U. S., at 284 (opinion of GORSUCH, J.). Even suits against American defendants (like this one against Cisco) generally require a court to examine allegations of heinous acts committed by foreign nations or individuals.[1]

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The second point is that the power to create causes of action belongs to Congress. See, *e. g.*, *Sosa*, 542 U. S., at 727; *Nestlé*, 593 U. S., at 634–635 (opinion of THOMAS, J.). For

[1] The dissent is confident about the ability of federal courts to "improve foreign relations" and make judgments that are "'consonant with U. S. foreign policy interests.'" *Post*, at 173–174 (opinion of SOTOMAYOR, J.). The Constitution's allocation of power, however, requires greater judicial humility.

this reason, *Sosa* cautioned that the "decision to create a private right of action is one better left to legislative judgment in the great majority of cases." 542 U. S., at 727.

This understates the point. While our cases at one time permitted courts to provide redress if Congress remained silent, see, *e. g.*, *J. I. Case Co.* v. *Borak*, 377 U. S. 426, 433 (1964), "we have since rejected the practice of fashioning rights of action as we see fit," *FS Credit Opportunities Corp.* v. *Saba Capital Master Fund, Ltd.*, 608 U. S. 608, 613 (2026). That is so because "[h]ome-grown causes of action are difficult to reconcile with 'the Constitution's separation of legislative and judicial power.'" *Ibid.* (quoting *Egbert* v. *Boule*, 596 U. S. 482, 491 (2022)); see also *Ziglar* v. *Abbasi*, 582 U. S. 120, 133 (2017). Congress is better positioned than courts to evaluate the policy tradeoffs of creating liability. See *Nestlé*, 593 U. S., at 638–639 (opinion of THOMAS, J.). This is especially true in an area like this one, where the Constitution expressly delegates authority to Congress. Art. I, §8, cl. 10 (Congress may "define and punish . . . Offences against the Law of Nations"). For that reason, creating any cause of action "is an extraordinary act that places great stress on the separation of powers." *Nestlé*, 593 U. S., at 636 (opinion of THOMAS, J.).

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Sosa acknowledged both these points: that crafting new causes of action under the ATS "raise[s] risks of adverse foreign policy consequences," 542 U. S., at 728, and intrudes on Congress's prerogative to create private rights of action, *id.*, at 727. Because of these concerns, it consciously designed a test that would be extremely difficult to meet. But what *Sosa* made difficult, subsequent legal developments have made impossible.

Since *Sosa* was decided, we have firmly committed to the view that judicially created causes of action offend the separation of powers in almost every circumstance. As a result, we have virtually eliminated the practice of fashioning them. Our cases have emphasized that "'[i]f there are sound rea-

sons to think Congress might doubt the efficacy or necessity of a damages remedy, the courts must refrain from creating it.'" *Egbert*, 596 U. S., at 491 (quoting *Ziglar*, 582 U. S., at 137; alterations omitted); *Jesner*, 584 U. S., at 264 (quoting this language). Indeed, "'[e]ven a *single* sound reason to defer to Congress is enough.'" *Egbert*, 596 U. S., at 491 (quoting *Nestlé*, 593 U. S., at 635 (opinion of THOMAS, J.); emphasis added). In the ATS context, there will always be at least a "single sound reason" to conclude that Congress might not want the judiciary to take the lead. *Sosa* itself identified one applicable in every case: "the possible collateral consequences of making international rules privately actionable." 542 U. S., at 727. For *Sosa*, this was reason "for judicial caution." *Ibid.* Under our current precedent, it is reason not to proceed at all. Cf. *Kimble* v. *Marvel Entertainment, LLC*, 576 U. S. 446, 458 (2015) ("'growth of judicial doctrine'" is a relevant consideration when reconsidering a prior case).

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Though one is enough, there is another "sound reason" staying the judiciary's hand. Our post-*Sosa* cases have stressed that if Congress has created "an alternative remedial structure," then "*that alone*" precludes the creation of a cause of action. *Ziglar*, 582 U. S., at 137 (emphasis added); see also *Egbert*, 596 U. S., at 493. Such a structure exists here: the TVPA, which creates an express cause of action under the ATS. *Sosa* acknowledged that Congress had limited the TVPA "to specific subject matter" and had taken no subsequent action to expand the covered conduct. 542 U. S., at 728. Again, for *Sosa*, this was reason to slow down, *ibid.*; under our current precedent, it is reason to stop.

Beyond changes in the law, it is hard to see how correcting *Sosa*'s unfulfilled prediction would upset reliance interests. Any such interests would belong to future plaintiffs—who surely are not relying on the remote possibility that U. S. courts would create an ATS action if they were someday injured and sought one. As for stability, today's decision pro-

motes rather than undermines it. We have never—not once—created an ATS cause of action. Cf. *Edwards* v. *Vannoy*, 593 U. S. 255, 274 (2021) ("No one can reasonably rely on a supposed exception that has never operated in practice"). And given the "high bar" that *Sosa* set, 542 U. S., at 727, it is a stretch to believe that we ever would have. We thus see no need to "indulge the fiction" that creating new ATS causes of action is sometimes appropriate. *Edwards*, 593 U. S., at 274. Doing so would "mislea[d] litigants" by suggesting that recovery might be available while "needlessly expend[ing] . . . scarce [judicial] resources." *Id.*, at 275.[2]

In sum, we close the door that *Sosa* cracked to judicially created ATS liability. We do not disturb *Sosa*'s holding that the ATS is a jurisdictional statute; nor do we revisit its assumption that causes of action are available for torts corresponding to the Blackstone three.[3] We conclude only that

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[2] While few plaintiffs have successfully litigated ATS suits to final judgment, many more have sued and obtained large settlements. See C. Ewell, O. Hathaway, & E. Nohle, Has the Alien Tort Statute Made a Difference?: A Historical, Empirical, and Normative Assessment, 107 Cornell L. Rev. 1205, 1251–1252, 1278 (2022) (discussing ATS settlements, some of which resulted in "multimillion-dollar payments to plaintiffs"). Shutting off the possibility of additional ATS liability thus also provides clarity to defendants.

[3] The dissent recruits the Blackstone three as support for judicial power to create ATS actions. If the Blackstone three, the dissent asks, then why not more? *Post*, at 169. The Blackstone three do not give the dissent what it is looking for, because *Sosa* did not invoke them as evidence that the ATS originally granted courts the authority to *create* causes of action. Under the prevailing jurisprudence of the time, *Sosa* said, such torts were understood to be "found or discovered" by courts rather than "made or created." 542 U. S., at 725. Offering examples, *Sosa* stated that offenses against ambassadors "appea[r] to have been" at top of mind, violations of safe conduct "were probably understood to be actionable," and "individual actions arising out of prize captures and piracy may well have also been contemplated." *Id.*, at 720. Those are the only ATS actions this Court has ever specifically mentioned, and to the extent there has been reliance on the availability of those three actions, we see no need to revisit

Sosa was overly optimistic in its prediction that there might be a narrow class of cases in which courts may create ATS actions without infringing on the prerogatives of the political branches. In truth, this class is a null set.

What result for this case? Cisco argues that the Ninth Circuit erred in holding that aiding-and-abetting liability exists under the ATS for the torts alleged by the plaintiffs. Cisco is correct. Courts cannot create new rights of action to remedy violations of international law, so there is necessarily no liability for aiding and abetting such violations. Plaintiffs' ATS claims against Cisco must be dismissed.

III

One of the plaintiffs also sued two Cisco executives under the TVPA for aiding and abetting torture. Recall that the TVPA provides a cause of action against someone who "subjects" another to torture. 106 Stat. 73, note following 28 U. S. C. § 1350.

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In *Central Bank of Denver, N. A.* v. *First Interstate Bank of Denver, N. A.*, 511 U. S. 164 (1994), we held that § 10(b) of the Securities Exchange Act of 1934 does not create civil aiding-and-abetting liability. Our analysis was straightforward: Section 10(b) "'does not in terms mention aiding and abetting.'" *Id.*, at 175. That fact differentiates it from other civil statutes in which Congress expressly provided for that specialized form of liability. *Id.*, at 176–177, 182–183 (collecting statutes). Because Congress "'ha[s] little trouble'" imposing aiding-and-abetting liability "'expressly,'" its omission of the phrase in § 10(b) was dispositive. *Id.*, at 177 (quoting *Blue Chip Stamps* v. *Manor Drug Stores*, 421 U. S. 723, 734 (1975)).

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them. But while we say "this far and no further," the dissent would go very far indeed. In the name of honoring the expectations of the First Congress, it would leverage the Blackstone three to justify power that would have confounded the First Congress.

Just so here. The TVPA nowhere mentions aiding-and-abetting liability, and that silence is enough to settle the issue. As then-Judge Kavanaugh put it, *Central Bank* makes it "crystal clear" that no aiding-and-abetting liability exists under the TVPA because Congress has not expressly provided for it. *Doe* v. *Exxon Mobil Corp.*, 654 F. 3d 11, 87 (CADC 2011) (opinion dissenting in part). We agree.

Plaintiffs counter that "subjects" is broad enough to include aiding-and-abetting liability. It is not. To "subject" another to torture means "to cause to undergo or submit to." Webster's Third New International Dictionary 2275 (1993); see also American Heritage Dictionary 1788 (3d ed. 1992) ("[t]o cause to experience"). The term thus signals a causal connection between torturer and victim. Aiding-and-abetting liability, by contrast, encompasses many forms of assistance provided by those who are one (or more) steps removed from the torturer. See *Twitter, Inc.* v. *Taamneh*, 598 U. S. 471, 497 (2023) (disclaiming a "strict nexus" requirement). *Central Bank* rejected a similar argument—that the phrase "'directly or indirectly'" in §10(b) authorized aiding-and-abetting liability. 511 U. S., at 175–176. The "basic flaw" in that interpretation "is that aiding and abetting liability extends beyond persons who engage, even indirectly, in a proscribed activity." *Id.*, at 176. After all, it encompasses those "who do not engage in the proscribed activities at all, but who give a degree of aid to those who do." *Ibid.* The "basic flaw" we identified in *Central Bank* exists here too: Aiding-and-abetting liability sweeps more broadly than the language Congress chose.[4]

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* * *

We recognize, as does the dissent, *post*, at 181, that ATS and TVPA cases frequently involve heinous and inhumane

[4] We have noted that the TVPA "contemplates liability" against those "who do not personally execute the torture"—in particular, those who "giv[e] an order to torture." *Mohamad* v. *Palestinian Authority*, 566

acts. The political branches or other international actors may well provide redress. But we decline to distort the statutory text or the Constitution's allocation of powers to enlist U. S. courts in that project. The judgment of the Court of Appeals is reversed, and the case is remanded for further proceedings consistent with this opinion.

It is so ordered.

JUSTICE JACKSON, with whom JUSTICE KAGAN joins, concurring in judgment in part and dissenting in part.

I agree with JUSTICE SOTOMAYOR's discussion of the Alien Tort Statute. See *post*, at 162–167 (dissenting opinion). But I think the Court is correct to conclude that the Torture Victim Protection Act of 1991 (TVPA) does not encompass aiding-and-abetting liability. I write separately because, while my textual analysis of the TVPA tracks the majority's, see *ante*, at 156–157, I do not agree with how the majority deploys *Central Bank of Denver, N. A.* v. *First Interstate Bank of Denver, N. A.*, 511 U. S. 164 (1994), here.

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Central Bank is relevant insofar as it instructs that "there is no general presumption" that a statute imposes aiding-and-abetting liability; rather, Congress must provide it. *Id.*, at 182. And here, Congress's use of the term "subjects" does not do so. But, as JUSTICE SOTOMAYOR discusses, *post*, at 183–184, the majority is wrong to treat *Central Bank* as creating a "magic words" test for aiding-and-abetting liability generally. Contra, *ante*, at 156; see *Soto* v. *United States*, 605 U. S. 360, 373 (2025) ("[W]e have so often denounced" a "'magic words' test"). Instead, the absence of the words "aid" and "abet" in the statute we interpreted in *Central Bank* was but one consideration of many. See 511

U. S. 449, 458 (2012); see also *post*, at 182 (opinion of SOTOMAYOR, J.) (relying on this assertion). Such liability, however, is much more limited than aiding-and-abetting liability.